

- (b) The expenses incurred by a council under this Act shall be defrayed out of the poor rate, and in the case of a county council shall be raised as a county at large charge, and a council may borrow for the purposes of this Act under Article 22 of the Schedule to the Local Government (Application of Enactments) Order, 1898.

Short title
and com-
mencement.

5. This Act may be cited as the Blind Persons Act, 1920, and shall come into operation on the tenth day of September, nineteen hundred and twenty.

CHAPTER 50.

An Act to provide for the better administration of mines, and to regulate the coal industry, and for other purposes connected with the mining industry and the persons employed therein. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

ADMINISTRATION OF MINING INDUSTRY.

Establish-
ment of Mines
Department
of Board of
Trade.

1. For the purpose of securing the most effective development and utilisation of the mineral resources of the United Kingdom and the safety and welfare of those engaged in the mining industry, there shall be established a department of the Board of Trade (to be known as the Mines Department) under a Parliamentary Secretary of the Board (in this Act referred to as "the Secretary for Mines"), and all powers and duties of the Board of Trade in relation to mines and the mining industry, whether under this Act or otherwise, shall, subject to the directions of the Board of Trade, be exercised and performed through the Secretary for Mines.

General
powers and
duties.

2.—(1) It shall be the duty of the Board of Trade, in the exercise and performance of their powers and duties in relation to mines and the mining industry, to take steps to carry out the purposes aforesaid, and there shall, as from such date or dates as His Majesty in Council may determine, be transferred to the Board of Trade all the powers of a Secretary of State under enactments relating to mines and quarries.

(2) If in regard to any other powers and duties of any Government department relating to mines, quarries, or minerals or the mining industry or the persons engaged therein, whether conferred by statute or otherwise, it is deemed expedient that such powers and duties should be transferred to the Board of Trade, or be exercised or performed by the Board of Trade

concurrently or in consultation with the Government department concerned, His Majesty in Council may by order make provision for the purpose.

(3) The Board of Trade shall undertake the collection, preparation, and publication of information and statistics relating to the mining industry, and shall co-operate with such Committees of the Privy Council as are formed for the purpose, and any other Government departments concerned, in the initiation and direction of research in relation to matters connected with the powers and duties of the Board of Trade.

(4) His Majesty in Council may by order make such consequential and supplemental provisions as appear necessary or expedient for the purpose of giving full effect to any transfer of powers or duties by or under this Act, including provision for the transfer and vesting of any property, rights, and liabilities held, enjoyed, or incurred by any Government department in connection with any powers or duties transferred, and may make such adaptations in the Acts or regulations relating to such powers or duties as appear necessary to make exerciseable by the Board of Trade the powers and duties so transferred.

(5) Before any Order in Council under this section is made, notice of the proposal to make the order and of the place where copies of a draft of the order can be obtained shall be published in the London, Edinburgh, and Dublin Gazettes, as the case may require, and in such other manner as the Board of Trade think best adapted for ensuring publicity.

(6) An Order in Council under this section may be altered or revoked by a subsequent order.

(7) In connection with the transfer of powers and duties to the Board of Trade by or under this Act, the provision set out in the First Schedule to this Act shall have effect.

3.—(1) During a period of one year after the thirty-first day of August, nineteen hundred and twenty, it shall be lawful for the Board of Trade from time to time to give directions—

Powers of regulating export and price of coal.

(a) regulating the export of coal and the supply of coal for the bunkering of vessels; and

(b) regulating the pithead price to be charged for coal sold for consumption in the British Islands, and for coal sold for the bunkering of vessels other than vessels proceeding to ports outside the British Islands.

(2) Whilst any such directions are operative it shall be lawful for the Board of Trade also to give directions as to the wages to be paid to workers in coal mines, and by order to regulate the distribution of profits, and any such order shall contain provisions framed on principles similar to the principles on which the provisions of the Coal Mines (Emergency) Act, 10 Geo. 5. 1920, are framed, so as to secure, as far as practicable, an equitable distribution as between different collieries: *c. 4.*

Provided that before any such order is made a draft thereof shall be laid before both Houses of Parliament, and the order shall not be made unless the draft has been approved by resolution of both Houses of Parliament, nor, if modifications in the draft are agreed to by both Houses, otherwise than as so modified.

(3) If any person exports, sells or supplies, or offers for sale, or attempts to export or supply any coal in contravention of any directions given under this section or otherwise contravenes any such directions, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, or, in the case of a contravention of the directions as to the export, supply or price of coal, at the discretion of the court, to a fine not exceeding treble the amount by which the sum paid or payable on any coal exported, supplied or sold by him in contravention of any such directions exceeds the maximum sum which would have been paid or payable for the coal if there had been no such contravention, and any coal which, in contravention of any such directions, is exported, or brought to any place or waterborne to be shipped for exportation or for bunker coal, shall be forfeited under the Customs (Consolidation) Act, 1876, as amended by any subsequent enactment:

39 & 40 Vict.
c. 36.

Provided that a prosecution for an offence under this subsection may, notwithstanding anything in any other Act, be instituted at any time within one year of the commission of the offence.

(4) The powers of giving such directions and making such orders as aforesaid may be exercised by the Board of Trade after the expiration of the said one year, till the thirty-first day of March, nineteen hundred and twenty-two, if the exercise of such powers is authorised by a resolution passed by both Houses of Parliament.

(5) An order made under this section shall have effect as from such date (which may be a date earlier than the date of the making of the order) as may be specified in the order, and shall have effect as if enacted in this Act, but may be revoked or varied by a subsequent order.

10 Geo. 5. c. 4.

(6) The Coal Mines (Emergency) Act, 1920, shall continue in force until the date as from which the first order made under this section takes effect, or until the thirty-first day of August, nineteen hundred and twenty-one, whichever may be the earlier; and that Act shall have effect as if in section eleven thereof for the reference to the thirty-first day of August, nineteen hundred and twenty, there were substituted a reference to the date to which the Act is continued by this provision.

(7) The provisions of this section relating to the export of coal shall apply to coke, briquettes, and other solid fuel of which coal or coke is a constituent, in like manner as they apply to coal.

4.—(1) The Board of Trade shall appoint committees for the purpose of giving the Board advice and assistance on matters connected with their powers and duties under this Act relating to coal and the coal industry and to the metalliferous mining industry respectively, and may appoint one or more other committees for the purpose of giving the Board advice and assistance on matters connected with any of their other powers and duties relating to mines and the mining industry, and in appointing members of any committee hereinbefore referred to the Board of Trade shall act after consultation with the various interests concerned. Advisory committees.

(2) The Board of Trade shall refer to an advisory committee for advice any question relating to the powers and duties of the Board relating to mines and the mining industry which appears to the Board of such a nature as to make such reference desirable, and shall take into consideration any representations thereon which may be made to the Board by any such committee.

(3) The advisory committee on coal and the coal industry shall consist of a chairman and twenty-four other persons, of whom—

Four shall be representative of owners of coal mines;

Four shall be representative of workers in or about coal mines;

Three shall be representative of employers in other industries;

Three shall be representative of workers in other industries;

One shall be a mining engineer;

Two shall be agents or managers or under-managers of coal mines holding first class certificates;

One shall be a coal exporter;

One shall be a coal factor or coal merchant;

One shall be a person with experience of commerce other than the production or distribution of coal;

One shall be a person with experience in co-operative trading;

Three shall be persons with expert knowledge of medical or other science.

5.—(1) There shall be paid out of moneys provided by Parliament to the Secretary for Mines an annual salary not exceeding fifteen hundred pounds. Staff remuneration and expenses.

(2) The salaries and remuneration of the officers and servants of the Department of Mines and the expenses of the Department, to such amount as may be sanctioned by the Treasury, shall be paid out of moneys provided by Parliament, provided that the total amount of such salaries, remuneration, and expenses shall not in any year exceed two hundred and fifty thousand pounds.

(3) There shall be transferred and attached to the Board of Trade such of the persons employed under any other Government department in or about the execution of the powers and duties transferred by or under this Act to the Board of Trade, as the Board of Trade and the other Government department, with the sanction of the Treasury, may determine.

(4) The Board of Trade may from time to time distribute the business of the department amongst the several persons transferred and attached thereto in pursuance of this Act, in such manner as they may think right, and those officers shall perform such duties in relation to that business as may be directed by the Board of Trade :

Provided that such persons shall be in no worse position as respects the tenure of office, salary, or superannuation allowances than they would have been if this Act had not been passed.

Ability of
Secretary for
Mines to sit
in Parliament.

6. The office of the Secretary for Mines shall not render the holder thereof incapable of being elected to or sitting or voting as a member of the Commons House of Parliament.

PART II.

REGULATION OF COAL MINES.

Pit and
district
committees,
and area and
national
boards.

7. The Board of Trade shall by regulations provide for the constitution—

- (a) of a pit committee for every coal mine where a resolution in favour thereof is passed by a majority (to be ascertained by ballot in accordance with the said regulations) of the workers employed in or about the mine, except that it shall not be necessary to constitute a pit committee for any mine which is a small mine within the meaning of the Coal Mines Act, 1911;
- (b) of a district committee for each of the districts mentioned in Part I. of the Second Schedule to this Act;
- (c) of an area board for each of the areas mentioned in Part II. of that schedule;
- (d) of a National Board;

having such functions as may, subject to the provisions of this Act, be prescribed by the regulations, and the procedure and meetings of the several committees and boards shall be such as may be prescribed by the regulations :

Provided that—

- (i) where a district is co-extensive with an area, the district committee shall perform the functions of the area board as well as of the district committee;

1 & 2 Geo 5.
c. 50.

- (ii) districts and areas may be varied by order of the Board of Trade after consultation with the National Board and with the consent of the district committees or area boards affected;
- (iii) where a mine situate in one district has, for industrial purposes, been customarily dealt with as if it were a mine situate in an adjoining district, that mine shall, for the purposes of this Part of the Act, if the owner and the workers employed in or about the mine so agree, be treated as being situate in such adjoining district.

8.—(1) A pit committee shall not exceed ten in number and shall consist of representatives of the owners and management of the mine appointed by the owners and of workers employed in or about the mine selected by ballot of the workers in accordance with the regulations from amongst their own number, so however that the representatives of the workers shall constitute half of the number of the pit committee.

Constitution and functions of pit committees.

(2) The functions of a pit committee shall be to discuss and make recommendations with respect to—

- (a) the safety, health, and welfare of the workers in connexion with their work at the mine;
- (b) the maintenance and increase of output;
- (c) reports made on an inspection under section sixteen of the Coal Mines Act, 1911, which reports shall be referred to the committee by the manager;
- (d) disputes arising in connexion with the mine including disputes as to wages;
- (e) any other questions and matters relating to the mine which may be prescribed by the regulations.

(3) In the case of a mine for which a pit committee is established the management of the accommodation and facilities for taking baths and drying clothes provided under section seventy-seven of the Coal Mines Act, 1911, shall be under the control of the pit committee instead of that of a committee established in accordance with subsection (5) of that section.

(4) The regulations shall provide for matters which cannot be satisfactorily disposed of by the pit committee being referred to the district committee, or, in the case of questions to which the Coal Mines Act, 1911, applies, to the inspector of the division.

(5) For enabling a pit committee to exercise their functions under paragraphs (a) and (b) of subsection (2) of this section, the committee shall be entitled to be furnished by the manager of the mine with such relevant information as may be necessary for the purpose, and may appoint two of their members, one being a person concerned in the management of the mine and one being a worker, to make periodical inspections of the mine or

any part thereof and to report the result of their inspections to the committee, and the persons so appointed shall have all such facilities for the purpose of making inspections as persons appointed to make inspections under section sixteen of the Coal Mines Act, 1911, and that section shall apply accordingly.

(6) Any recommendations of the pit committee made on any report under section sixteen of the Coal Mines Act, 1911, which has been referred to the committee, and on any other matters to which that Act relates, shall be sent to the inspector of the division by the manager.

**Constitution
and functions
of district
committees.**

9.—(1) A district committee shall consist of representatives of the owners and management of the coal mines in the district appointed by the owners in accordance with the regulations constituting the committee, and an equal number of representatives of workers employed in or about such mines elected by the workers in accordance with those regulations.

(2) A district committee shall take into consideration—

- (a) questions affecting the district of the same nature as those which may be the subject of discussion and recommendations by a pit committee;
- (b) any questions which may be referred to them by a pit committee;
- (c) any questions which may be referred to them by the area board, or the Board of Trade;

and, if the matter is one proper to be dealt with by the area board rather than by the district committee, they shall refer the matter to the area board, and in any other case they shall deal with the matter themselves and make such recommendations as they think fit, and, if their recommendations are not complied with, they may forward them with a report on the matter to the Board of Trade.

**Constitution
and functions
of area
boards.**

10.—(1) An area board shall consist of representatives of the owners and management of the coal mines in the area nominated in accordance with the regulations constituting the board by the representatives of the owners and management who are members of the various district committees within the area, and an equal number of representatives of workers employed in or about such mines so nominated by the representatives of workers who are members of the district committees within the area.

(2) The area board shall take into consideration—

- (a) questions affecting the area of the same nature as those which may be the subject of consideration by a district committee;
- (b) any questions which may be referred to them by a district committee;

- (c) any questions which may be referred to them by the National Board or the Board of Trade,

and, if the matter is one proper to be dealt with by the National Board rather than by the area board, in that it raises any question affecting more than one area, they shall refer the matter to the National Board, and in any other case they shall deal with the matter themselves, and make such recommendations as they think fit, and, if their recommendations are not complied with, they may forward them with a report on the matter to the Board of Trade.

(3) An area board shall formulate, at such intervals and on such principles as may be prescribed by the National Board, schemes for adjusting the remuneration of the workers within the area, having regard among other considerations to the profits of the industry within the area, and any such scheme when formulated shall be submitted to the National Board for their approval, and, if approved by that Board, shall be referred to the Board of Trade, and for the purposes of this subsection the owners of mines in the area shall furnish to accountants appointed by the area board such information as they may require in order that they may ascertain for the information of the area board particulars of the output, cost of production, proceeds and profits in the area as a whole :

Provided that no such scheme shall be formulated during the period of the operation of the Coal Mines (Emergency) Act, 1920, or, if the Board of Trade so direct, whilst an order made by the Board of Trade under Part I. of this Act as to the distribution of profits is in force.

(4) The accountant so appointed as aforesaid shall not include in his report or disclose information with respect to any particular undertaking, and, if he does so, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds.

11. The Board of Trade may by regulations provide for district committees or area boards determining any questions and exercising any powers which before the passing of this Act can be determined or exercised by a conciliation board or by a joint district board constituted under the Coal Mines (Minimum Wage) Act, 1912; and the regulations may provide for the appointment of an independent chairman, with a casting vote, to preside at meetings of any district committee or area board when determining any such question or exercising any such power, and may add to or alter the districts mentioned in the Schedule to the Coal Mines (Minimum Wage) Act, 1912 :

Additional powers of district committees and area boards.
2 & 3 Geo. 5.
c. 2.

Provided that the regulations shall not provide for the appointment of such an independent chairman when the committee or board acts as a conciliation board except in pursuance of an agreement to that effect.

**Constitution
and functions
of National
Board.**

12.—(1) The National Board shall consist of such number of members as may be prescribed by the regulations, of whom one-half shall be representatives of the owners and management of coal mines throughout the United Kingdom, and one-half shall be representatives of workers employed in or about such mines.

(2) The National Board shall take into consideration—

- (a) questions, including wages questions, affecting the coal mining industry as a whole;
- (b) any questions which may be referred to them by an area board;
- (c) any questions which may be referred to them by the Board of Trade;

and may make recommendations in respect thereof, and may, in any case when their recommendations are not complied with, or in any other case where they think fit, forward their recommendations with a report on the matter to the Board of Trade.

(2) The National Board shall also determine, subject to the approval of the Board of Trade, the principles on which schemes by area boards under this Part of this Act for adjusting the remuneration of workers are to be framed, and shall consider all such schemes when submitted to them for their approval.

**Power of
Board of
Trade to
direct com-
pliance with
recommendations and
schemes.**

13. Where any recommendations made by a district committee or area board or by the National Board, or any scheme made by an area board and approved by the National Board, have been forwarded or referred to the Board of Trade as aforesaid, the Board of Trade shall take such recommendations or scheme into consideration, and may, if they think fit, give directions requiring any person engaged in the coal mining industry to comply therewith, and it shall be the duty of every person to whom those directions apply to comply therewith, and if any such person fails to do so he shall be guilty of an offence against the Coal Mines Act, 1911:

Provided that, where the recommendations relate to matters within the scope of the authority of some other Government department, the Board of Trade before giving any such directions as aforesaid shall obtain the approval of that other department.

**Meaning of
recommendation.**

14. For the purpose of the foregoing provisions of this Part of this Act, the expression "recommendation" means a recommendation approved by a majority of the representatives of the owners and management present at the meeting at which the recommendation was passed, and by a majority of the representatives of the workers so present.

**Fees to
members and
expenses of
pit com-
mittees.**

15. There shall be paid to the members of pit committees such fees for attendance at meetings thereof as may be prescribed by the regulations, and such payments, together with any expenses incurred in accordance with the regulations by such committees in the discharge of their functions shall be payable by the owner of the mine as part of the working expenses of the mine.

16. The provisions of sections eighty-six and one hundred and seventeen of, and Part I. of the Second Schedule to, the Coal Mines Act, 1911, which relate to general regulations shall apply with the necessary modifications to regulations under this Part of this Act. Provisions as to regulations under Part II.

17. If at the expiration of one year from the passing of this Act it appears to the Board of Trade that the scheme of this Part of the Act has been rendered abortive by reason of the failure on the part of those entitled to appoint representatives as members of the pit and district committees, area boards, and the National Board to avail themselves of such right, the Board of Trade shall issue a report of the circumstances, and that report shall be laid before Parliament, and at the expiration of thirty days during the session of Parliament from the date when it is so laid all the provisions of this Part of this Act shall cease to have effect unless in the meantime a resolution to the contrary is passed by both Houses of Parliament. Cessation of Part II. in certain eventualities.

PART III.

GENERAL.

18.—(1) It shall be lawful for the Board of Trade after consultation with the district committee or committees concerned, or holding such other inquiry as they may think fit, to make schemes with respect to any group of mines as to the drainage thereof, and as to the apportionment as between the owners of the mines in question of any expenditure for a common purpose that may be required by any such scheme, and any such scheme may amend or repeal any local Act of Parliament in connexion with such drainage. Schemes as to drainage.

(2) For this purpose the Board of Trade may adopt with or without modifications any scheme relating to the drainage of any group of mines proposed by all or any of the owners of such mines.

(3) The provisions of sections eighty-six and one hundred and seventeen of, and Part I. of the Second Schedule to, the Coal Mines Act, 1911, which relate to general regulations shall apply with the necessary modifications to schemes under this section :

Provided that before any scheme involving the amendment or repeal of any local Act of Parliament comes into force it shall be laid before each House of Parliament for a period of not less than fourteen days during which that House is sitting, and, if either House before the expiration of that period presents an address to His Majesty against the scheme or any part thereof, no further proceedings shall be taken thereon without prejudice to the making of any new scheme.

19.—(1) The provisions of sections eighty-six, eighty-seven, and one hundred and seventeen of, and the Second Schedule to, Power to make general and special

regulations
with respect
to metalli-
ferous mines.

the Coal Mines Act, 1911 (which relate to the making of general and special regulations), shall apply to metalliferous mines within the meaning of the Metalliferous Mines Regulation Acts, 1872 to 1875, as if they were re-enacted in those Acts and in terms made applicable to those mines but with this modification, that in the said section eighty-six for the reference to Part II. of, or the Third Schedule to, the Coal Mines Act, 1911, there shall be substituted a reference to the general rules contained in section twenty-three of the Metalliferous Mines Regulation Act, 1872.

35 & 36 Vict.
c. 77.

38 & 39 Vict.
c. 39.

(2) For the purposes of the Metalliferous Mines Regulation Acts, 1872 and 1875, the expression "mine" does not include any part of the premises on which any manufacturing process, other than a process ancillary to the getting, dressing, or preparation for the sale of minerals is carried on.

Establish-
ment of fund
for improve-
ment of social
conditions of
colliery
workers.

20.—(1) There shall be constituted a fund to be applied for such purposes connected with the social well-being, recreation, and conditions of living of workers in or about coal mines and with mining education and research as the Board of Trade, after consultation with any Government Department concerned, may approve.

(2) The owners of every coal mine shall, before the thirty-first day of March, nineteen hundred and twenty-one, and before the same day in each of the subsequent five years, pay into the said fund a sum equal to one penny a ton of the output of the mine during the previous calendar year, and the sums so payable in respect of any mine shall be defrayed as part of the working expenses of the mine and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt:

Provided that in the case of the first payment the amount shall be calculated with reference to the output during the six calendar months ending the thirty-first day of December, nineteen hundred and twenty.

(3) The duty of allocating the money from time to time standing to the credit of the said fund to the several purposes aforesaid shall be vested in a committee consisting of five persons, appointed by the Board of Trade, of whom one shall be appointed by the Board of Trade after consultation with the Mining Association of Great Britain, and another after consultation with the Miners' Federation of Great Britain. The committee shall have the assistance of three assessors appointed by the Minister of Health, the Board of Education and the Secretary for Scotland respectively; the assessors shall have the right of attending meetings of the committee and of taking part in the deliberations thereof, but not of voting; and different persons may be appointed by the above-mentioned departments to act as assessors in relation to different matters:

Provided that the Committee shall take into consideration any scheme submitted by a district committee, and that before allocating any money for a local purpose they shall consult with the district committee (if any) concerned; and that the Committee shall allocate for the benefit of the several districts mentioned in Part I. of the Second Schedule to this Act sums equal to four-fifths of the contributions from the owners of coal mines in those districts respectively.

(4) The committee may invite a local authority to submit a scheme for any of the purposes to which the fund may be applied, and, if such scheme be approved by the committee, they may make such grants in aid to the said local authority out of the fund and upon such conditions as may seem to them desirable:

Provided that in no case shall any grant be made out of the fund for the building or repairing of dwelling-houses.

(5) Where money is allocated for the purpose of meeting the cost, in whole or in part, of providing accommodation and facilities at a coal mine for the workmen taking baths and drying clothes, and such accommodation and facilities are so provided, section seventy-seven of the Coal Mines Act, 1911, shall apply as if such accommodation and facilities had been provided under that section:

Provided that—

(a) cost of maintenance shall not be deemed to include any interest on capital expenditure so far as that expenditure was met out of money allocated from this fund; and

(b) the contribution of the workmen to the cost of maintenance shall be reduced by the proportion which the money so allocated from the fund bears to the total capital expenditure.

(6) Payments out of and into the fund, and all other matters relating to the fund, and moneys standing to the credit of the fund (including temporary investments thereof) shall be made and regulated in such manner as the Board of Trade, subject to the approval of the Treasury, may direct.

(7) The Board of Trade shall in each year cause an account to be prepared and transmitted to the Comptroller and Auditor-General for examination showing the receipts into and issues out of the said fund in the financial year ended the thirty-first day of March preceding, and the Comptroller and Auditor-General shall certify and report upon the same, and such account and report shall be laid before Parliament.

21.—(1) It shall be the duty of the owners, agents, and managers of any mine, and any other persons engaged in the mining industry, to furnish to the Board of Trade, in such

Accounts,
statistics,
returns, &c.

manner and form as the Board may direct, such accounts, statistics, returns, plans and other information as the Board may require for the purpose of their powers and duties under this Act.

(2) No information with respect to any particular undertaking shall be included in any published report, unless the owner of the undertaking so agrees, and any person who may obtain any such information under this section shall be required to make a declaration of secrecy in such form as may be prescribed by the Board of Trade and any person who acts in contravention of any declaration which he has so made shall be guilty of a misdemeanour and on conviction be liable to imprisonment, with or without hard labour, for a term not exceeding two years, or to a fine not exceeding one hundred pounds, or to both imprisonment and a fine.

Power to hold
inquiries.

22.—(1) The Board of Trade may hold such inquiries as they consider necessary or desirable for the purposes of this Act, and the Board of Trade and, if authorised by the Board of Trade, the person appointed to hold any such inquiry, may, by order, require any person, subject to the payment or tender of the reasonable expenses of his attendance, to attend as a witness and give evidence, or to produce any documents in his possession or power which relate to any matter in question at the inquiry, and are such as would be subject to production in a court of law, and, if any person fails without reasonable excuse to comply with any of the provisions of any such order, he shall be liable on summary conviction to a fine not exceeding five pounds, and the person holding the inquiry shall have power to take evidence on oath and for that purpose to administer oaths.

(2) Notices of inquiries may be given and published in accordance with such general or special directions as the Board of Trade may give.

(3) The powers of the Board of Trade under this section shall be in addition to and not in derogation of any powers of holding inquiries transferred to the Board from any other Government department under this Act.

Inter-
departmental
arrangements.

23. The Board of Trade and any other Government department may make arrangements for the exercise and performance by such other Government department or by the Board of Trade of any of the powers and duties of the Board of Trade or such other Government department relating to mines and the mining industry which appear to them to be such as could be more conveniently so exercised and performed, and in such case such other Government department and their officers, or the Board of Trade and their officers, as the case may be, shall have all the powers and duties for such purpose

as are exerciseable by the Board of Trade and their officers or such other department and their officers.

24. The Price of Coal (Limitation) Act, 1915, shall be repealed as from the first day of September, nineteen hundred and twenty. Repeal of
5 & 6 Geo. 5.
c 75.

25. For the purposes of this Act, unless the context otherwise requires,— Interpreta-
tion.

The expressions “owner” and “agent” have the same meanings as in the Coal Mines Act, 1911, or the Metalliferous Mines Regulation Act, 1872, as the case may require :

The expression “management” in relation to a coal mine includes the agent, manager, under managers, technical and administrative staff, officials, and deputies, firemen and examiners of the mine :

The expressions “mines” and “the mining industry” include, respectively, quarries and the quarrying industry :
The expression “output” in relation to a coal mine means the tonnage in saleable coal raised and weighed at the pithead.

26. This Act may be cited as the Mining Industry Act, 1920. Short title.

SCHEDULES.

FIRST SCHEDULE.

Section 2.

TRANSITORY PROVISIONS.

1. In the construction and for the purposes of any Act of Parliament, judgment, decree, order, award, deed, contract, regulation, byelaw, or other document passed or made before the transfer to the Board of Trade from any other Government department of any powers or duties by or under this Act, but so far only as may be necessary for the purpose or in consequence of such transfer, the name of the Board of Trade shall be substituted for the name of the other Government department or any officer thereof.

2. Where anything has been commenced by or under the authority of any other Government department before the transfer to the Board of Trade of any powers or duties by or under this Act, and such thing is in relation to the powers or duties so transferred, such thing may be carried on and completed by or under the authority of the Board of Trade.

3. Where at the time of the transfer of any powers or duties by or under this Act any legal proceeding is pending to which any Government department is a party, and such proceeding has reference to the powers and duties transferred by or under this Act, the Board of Trade shall be substituted in such proceeding for the other Government department, and such proceeding shall not abate by reason of the substitution.

Sections 7
and 20.

SECOND SCHEDULE.

PART I.

COAL DISTRICTS.

Name of Districts.	Counties or parts of Counties included.
1. Fife and Clackmannan -	Counties of Fife, Clackmannan, Kinross, and Sutherland.
2. The Lothians - -	Counties of Midlothian and Haddington.
3. Lanarkshire - - -	Counties of Linlithgow, Lanark, Renfrew, Dumbarton, and Stirling.
4. Ayrshire - - -	Counties of Ayr, Dumfries, Argyll.
5. Northumberland - -	County of Northumberland.
6. Durham - - -	County of Durham.
7. Cumberland - - -	Counties of Cumberland and Westmorland.
8. Lancashire and Cheshire	Counties of Lancashire and Cheshire.
9. North Wales - - -	Counties of Denbigh and Flint.
10. South Yorkshire - -	South Yorkshire coalfield.
11. West Yorkshire - -	West Yorkshire coalfield.
12. Nottinghamshire - -	County of Nottingham.
13. Derbyshire - - -	County of Derby, exclusive of the South Derbyshire coalfield.
14. South Derbyshire - -	South Derbyshire coalfield.
15. North Staffordshire -	North Staffordshire coalfield.
16. Cannock Chase - - -	Cannock Chase coalfield.
17. South Staffordshire and Worcestershire.	South Staffordshire coalfield, and County of Worcester.
18. Leicestershire - - -	Leicestershire coalfield.
19. Warwickshire - - -	County of Warwick.
20. Shropshire - - -	County of Shropshire.
21. Forest of Dean - - -	Forest of Dean coalfield.
22. Somerset - - -	County of Somerset.
23. Bristol - - -	Bristol coalfield.
24. South Wales - - -	Counties of Monmouth, Glamorgan, Pembroke, Carmarthen, and Brecon.
25. Kent - - -	County of Kent.
26. Ireland - - -	All Counties in Ireland.

PART II.

COAL AREAS.

Name of Areas.	Coal Districts included.
1. Scotland - - -	Fife and Clackmannan, The Lothians, Lanarkshire, and Ayrshire.
2. Northumberland - -	Northumberland.
3. Durham - - -	Durham.
4. Midlands - - -	Cumberland, Lancashire and Cheshire, North Wales, South Yorkshire, West Yorkshire, Nottinghamshire, Derbyshire, South Derbyshire, North Staffordshire, Cannock Chase, South Staffordshire and Worcestershire, Leicestershire, Warwickshire, Shropshire.
5. Southern - - -	Forest of Dean, Somerset, Bristol, and Kent
6. South Wales - - -	South Wales.
7. Ireland - - -	Ireland.

CHAPTER 51.

An Act to make provision with respect to the administration of the estates of the Duchy of Lancaster, and with respect to the solicitor for the affairs of the said Duchy. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Any funds for the time being belonging to the Duchy of Lancaster may, notwithstanding anything in the Duchy of Lancaster (Lands) Act, 1855, whether in a state of investment or not, be invested in any of the investments specified in paragraph (a) of section one of the Trustee Act, 1893, and any enactment amending or extending that paragraph and any investments made in pursuance of this section shall be made in the names of at least three persons to be nominated by the chancellor and council of the said Duchy upon such trusts and in such manner as may be directed by the said chancellor and council.

Extension of powers of investment of funds of Duchy of Lancaster.
18 & 19 Vict. c. 58.
56 & 57 Vict. c. 53.

2.—(1) The chancellor and council of the Duchy of Lancaster shall, notwithstanding anything in the Crown Lands Act, 1 Anne, c. 1.

Mining leases.